

		Cal.App.4th 550, 558.) Accordingly, the demurrer is sustained with 15 days leave to amend.
8.	2023-1332366 Ivey vs. Ivey	
9.	2023-1333775 Karpan vs. S & W Loc, Inc.	The Court grants Shaun Joseph Bauman, Esq.’s Motion to be relieved as counsel for Plaintiff John Karpan. Counsel has used the required forms, all required information is supplied, and service is proper. (California Rules of Court, rule 3.1362.) Mr. Bauman is ordered to submit a new proposed order with all boxes filled out after the hearing for the Court’s signature. Mr. Bauman shall serve the signed Order on Plaintiff and Defense Counsel, and then file a proof of service showing the same. Mr. Bauman will be relieved as counsel upon filing a proof of service of a copy of the signed order on the client. Mr. Bauman shall serve notice of this Order.
10.	2023-1365896 Meyers vs. Tsaturyan	Defendants Aram Tsaturyan’s and Mkrtich Tsaturyan’s motion to strike the punitive damages claims from Plaintiffs’ First Amended Complaint (“FAC”) is granted with 15 days leave to amend. If Plaintiffs decide not to amend their Complaint, they shall notify Defendants and this Court within 15 days, and Defendants shall have 15 days thereafter to file an Answer. A court may strike out any irrelevant, false, or improper matter inserted in any pleading or strike out all or any part of any pleading not drawn or filed in conformity with the laws of this state, a court rule or an order of the court. Code Civ. Proc. § 436. “Irrelevant” matters include: allegations not essential to the claim, allegations neither pertinent to nor supported by an otherwise sufficient claim or a demand for judgment requesting relief not supported by the allegations of the complaint. (Code Civ. Proc. § 431.10(b).)

	Civil Code § 3294 provides that punitive damages may be awarded in an action for breach of an obligation not arising from contract, if the plaintiff proves by clear and convincing evidence that the defendant has been guilty of oppression, fraud, or malice. “Malice” means conduct that is intended to cause injury or despicable conduct that is carried on with a willful and conscious disregard of the right and safety of others. (Civ. Code § 3294(c)(1).) At the pleading stage, the complaint must allege facts supporting circumstances of oppression, fraud, or malice. (<i>Grieves v. Superior Court</i> (1984) 157 Cal.App.3d 159, 166 (“The mere allegation an intentional tort was committed is not sufficient to warrant an award of punitive damages. [Citation] Not only must there be circumstances of oppression, fraud or malice, but facts must be alleged in the pleading to support such a claim. [Citation].”).) Plaintiffs allege that on 2/20/22 on the SR-73 Southbound, Defendant Aram Tsaturyan was driving a vehicle entrusted to him by Defendant Mkrtich Tsaturyan, and caused a car accident with Plaintiffs. Specifically, they claim that Defendant was driving a Rolls Royce in excess of 100 mph and afterwards fled the scene of the collision. In <i>Taylor v. Superior Court</i> (1979) 24 Cal. 3d 890, the California Supreme Court ruled that nonintentional torts may form the basis for punitive damages when the conduct constitutes a conscious disregard of the rights or safety of others. (<i>Id.</i> at 896-96.) The plaintiff must establish, however, that the defendant was aware of the probably dangerous consequences of his conduct, and that he willfully and deliberately failed to avoid those consequences. (<i>Id.</i> at 895-96.) In <i>Taylor</i>, the defendant was intoxicated; he hit another car and injured the other driver. (<i>Id.</i> at 893.) The allegations in <i>Taylor</i> included that, prior to the accident in issue, the defendant had other drunk driving incidents, arrests, and accidents. The Court found sufficient allegations to support a claim for punitive damages because the allegations supported knowledge and disregard of probable injury to others. (<i>Id.</i> at 900.) <i>Dawes v. Superior Court</i> (1980) 111 Cal. App. 3d 82, decided before <i>Taylor</i>, addressed the issue of foreseeability, finding that the defendant’s speed and weaving in and out of traffic in an area congested with cars and pedestrians raised the
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	scenario above the foreseeability of injury to others inherent in driving under the influence to a probability of injury. (<i>Id.</i> at 86.) It was this set of circumstances, rather than the defendant’s intoxication, which provided a basis for punitive damages. (<i>Id.</i> at 89.) The Legislature followed these two cases with the additional “despicable” requirement for non-intentional malice claims under §3294. <i>Lackner v. North</i> (2006) 135 Cal.App.4th 1188, 1210 (racing at a high rate of speed did not alone demonstrate malice, particularly where defendant showed some effort to avoid impact.) As amended to include this word, the statute plainly indicates that absent an intent to injure the plaintiff, ‘malice’ requires more than a ‘willful and conscious’ disregard of the plaintiffs’ interests. The additional component of ‘despicable conduct’ must be found.” (<i>College Hospital, supra</i>, 8 Cal.4th at p. 725, 34 Cal.Rptr.2d 898, 882 P.2d 894.) (<i>Butte Fire Cases</i> (2018) 24 Cal.App.5th 1150, 1161.) As there are no cases cited by the parties (or that the Court is aware of) that deal with the issue of whether punitive damages are appropriate in a hit and run case like the instant matter, the foregoing cases are helpful. Based on the allegations in the FAC, it was certainly <i>foreseeable</i> that injury could occur, given that Defendants were going 100 mph. However, there are no other facts pled that would make it <i>probable</i> that injury could occur under these circumstances. (<i>Dawes, supra</i>, 11 Cal.App.3d at 86.) As Defendants point out, Defendant Aram fled the scene <i>after</i> the accident and injuries occurred; there are no claims that Defendants caused Plaintiffs additional damages above and beyond the accident itself. Furthermore, the allegations that Defendants were scared of being robbed because they were being followed by a sedan that told them to “pull over”, do not support willfulness. Based on the foregoing, the Court grants the motion to strike. Defendants shall give notice.
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11.	2023-1366300 CANNELL CAPITAL, LLC vs. BAKER TILLY US, LLP	Defendants Baker Tilly US LLP and Ernest Miranda’s Motion to Compel Arbitration is granted. Defendants Baker Tilly US LLP (“Baker Tilly”) and Ernest Miranda (“Miranda,” together with Baker Tilly, “Defendants”) move for an order compelling arbitration of all claims in the Complaint by Plaintiffs Cannell Capital, LLC, Tristan Partners, L.P., Tonga Partners, L.P., Tristan Offshore Fund, Ltd., Dugong, LLC, Frontier Capital, Ltd., Drake Enterprises, Ltd., Philip Drake, Motus Advisors, Inc., Turner Momentum Investments, LLC and Michael Piper (collectively, “Plaintiffs”). Defendants contend Plaintiffs’ professional negligence, negligent misrepresentation and fraud claims are subject to binding arbitration under an arbitration provision found in three engagement letters between Baker Tilly and non-party, LoanMe, Inc. (“LoanMe”), which Miranda may also enforce as the alleged agent of Baker Tilly. (Mot. at p. 10, fn. 3.) The arbitration provision states, in relevant part, that: If mediation does not settle the dispute or claim, then the parties agree that the dispute or claim shall be settled by binding arbitration. The arbitration proceeding shall take place in the city in which the Baker Tilly office providing the relevant services is located, unless the parties mutually agree to a different location. The proceeding shall be governed by the provisions of the Federal Arbitration Act (FAA) and will proceed in accordance with the then current Arbitration Rules for Professional Accounting and Related Disputes of the AAA, except that no prehearing discovery shall be permitted unless specifically authorized by the arbitrator ... Any issue concerning the extent to which any dispute is subject to arbitration, or concerning the applicability, interpretation, or enforceability of any of these procedures, shall be governed by the FAA and resolved by the arbitrators[.] (Miranda Decl. at ¶¶ 4-6, Exhs. A-C.) Although Plaintiffs are not signatories to the engagement letters, Defendants contend Plaintiffs are “estopped from avoiding arbitration,” because Plaintiffs are “seeking to obtain direct benefits from a contract; and/or (2) by seeking to enforce contract terms or asserting claims that must be determined by reference to that contract.” (Mot. at p. 11.) Under the “direct benefits” doctrine, a nonsignatory “is estopped from avoiding arbitration if it knowingly seeks the benefits of the contract containing the arbitration clause.” (<i>Crowley Maritime Corp. v. Boston Old Colony Ins. Co.</i> (2008))
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